

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index #:

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TYLER MARIN, an infant by his mother and natural guardian,
MARIA GARCIA and MARIA GARCIA, Individually,

Plaintiff,
-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, DETECTIVE
KENNETH KANG, P.O. SANDRO SIME,
Shield #8998, POLICE OFFICERS "JOHN DOE #1-10",
said names being fictitious and presently unknown and
intended to identify the officers from the 112th Precinct
who participated in the infant plaintiff's arrest,

Defendants.

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Plaintiffs, TYLER MARIN (hereinafter "Marin"), by his mother and natural Guardian,
MARIA GARCIA and MARIA GARCIA, individually, (hereinafter "Garcia"), by their
attorneys, RUBERT & GROSS, P.C., complaining of defendants:

1. On September 9, 2015, the infant plaintiff, Marin, was fourteen years of age having been born on April 20, 2001.
2. At all times hereinafter mentioned, defendant, CITY, was and still is a municipal corporation organized and duly existing under and pursuant to the laws of the State of New York.
3. At all times hereinafter mentioned, defendant, CITY, maintained a Police Department, the employees of which act as its agents in the area of law enforcement.
4. At all times hereinafter mentioned, defendant, DET. KENNETH KANG (hereinafter "KANG"), was a police officer with the New York City Police Department.
5. At all times hereinafter mentioned, defendant, P.O. SANDRO SIME, was a police

officer with the New York City Police Department.

6. At all times hereinafter mentioned, defendants JOHN DOE #1-10 (hereinafter collectively referred to as “JOHN DOES”, intended to identify the officers from the 112th Precinct who participated in the infant plaintiff’s arrest, were a police officers with the New York City Police Department.
7. At all times hereafter mentioned, defendant, KANG, was acting within the scope of his employment.
8. At all times hereafter mentioned, defendant, SIME, was acting within the scope of his employment.
9. At all times hereafter mentioned, defendants, JOHN DOES, were acting within the scope of his employment.
10. Defendant, KANG, is being sued individually and in his official capacity.
11. Defendant, SIME, is being sued individually and in his official capacity.
12. Defendant, JOHN DOES are being sued individually and in their official capacity.
13. At all times hereinafter mentioned, defendant, KANG, was acting under color of law.
14. At all times hereinafter mentioned, defendant, SIME, was acting under color of law.
15. At all times hereinafter mentioned, defendants, JOHN DOES, were acting under color of law.
16. On December 4, 2015 within ninety (90) days of accrual of all actions, plaintiffs filed a Notice of Claim with the Comptroller of the City of New York in the manner and mode required by law.
17. More than 60 days have elapsed since the filing of plaintiffs’ Notice of Claim and adjustment or payment thereof has been neglected or refused.

18. This action is brought within one (1) year and ninety (90) days from the date that from the date of accrual of all causes of action.

19. Plaintiffs have complied with all conditions precedent applicable to the instant action.

20. That this action falls within one or more of the exceptions of CPLR §1602, including, but not limited to CPLR §1602 (11).

FACTUAL ALLEGATIONS

21. On September 9, 2015, at approximately 3:30 PM, plaintiff, Marin, a 14-year-old boy, was searched, assaulted, battered and arrested near the 71st Avenue Subway station in front of the Forest Hills Deli located at 101-22 Queens Boulevard, Forest Hills, New York 11375 by members of the NYPD from the 112th precinct, including Detective “John” Kang, for a robbery that took place around 2:50 P.M. in Queens County the same afternoon.

22. During his arrest, Marin suffered bruises from the handcuffs tightly placed on his wrists.

23. A show-up identification was conducted at the site of arrest, with negative results, and the infant plaintiff was released.

24. Shortly thereafter, Marin’s mother, plaintiff Garcia, went to the 112th precinct located at 68-40 Austin Street, Forest Hills, NY, 11375, to inquire about Marin’s arrest.

25. At the precinct, Garcia met with the arresting officer, Detective Kang.

26. After GARCIA spoke with Detective Kang, Marin and Garcia left the precinct and returned home.

27. About an hour after plaintiffs had left the precinct, NYPD officers from the 112th

precinct, including Detective Kang, arrived at their apartment and transported MARIN and GARCIA back to the 112th precinct.

28. Upon arrival at the 112th precinct, Marin was arrested and processed.

29. While at the precinct, Marin was handcuffed to a pole and placed in a holding cell for several hours.

30. At approximately 9:00 p.m., Marin was released and given a desk appearance ticket signed by defendant, SIME.

31. The desk appearance ticket directed Marin to appear at Queens County Family Court located at 151-20 Jamaica Avenue, Jamaica, New York 11432 on September 11, 2015.

32. On September 11, 2015, Marin, along with Garcia, appeared in Queens County Family Court and met with a probation officer who interviewed them about the facts and circumstances of the arrest.

33. Marin was directed to appear before said probation officer again on September 17, 2015.

34. On September 17, 2015, Marin and Garcia appeared again before the probation officer and were informed that the case had been referred to the Office of Corporation Counsel.

35. On October 8, 2015, Marin and Garcia appeared again at the Queens County Family Court where they were informed that Corporation Counsel was still reviewing the file.

36. On or about October 28, 2015, Marin and Garcia received a Notice of Declination dated October 22, 2015 indicating that Corporation Counsel declined to continue the

prosecution against Marin.

FIRST CAUSE OF ACTION

37. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "36" above as if fully set forth herein.

38. On September 9, 2015, at approximately 3:30 p.m., while the infant plaintiff was near the 71st Avenue subway station in Forest Hills, Queens, he, was stopped, searched, assaulted and battered by the City of New York through members of the NYPD from the 112th precinct.

39. On September 9, 2015, at approximately 3:30 p.m., the infant plaintiff, Marin, was stopped, searched, assaulted and battered by defendant, KANG.

40. On September 9, 2015, at approximately 3:30 p.m., while the infant plaintiff, Marin, was stopped, searched, assaulted and battered by defendant, SIME.

41. On September 9, 2015, at approximately 3:30 p.m., while the infant plaintiff, Marin, was stopped, searched, assaulted and battered by defendants, JOHN DOES.

42. As a result of the aforementioned assault and battery, the infant, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

43. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SECOND CAUSE OF ACTION

44. Plaintiff repeats and reiterates each and every allegation contained in paragraphs

numbered "1" through "27" above as if fully set forth herein.

45. On September 9, 2015, at approximately 3:30 p.m., the infant plaintiff, Marin, was in
was falsely arrested by defendant, CITY, through its police officers.
46. On September 9, 2015, at approximately 3:30 p.m., the infant plaintiff, Marin, was
falsely arrested by defendant, KANG.
47. On September 9, 2015, at approximately 3:30 p.m., the infant plaintiff, Marin, was
falsely arrested by defendant, SIME.
48. On September 9, 2015, at approximately 3:30 p.m., the infant, Marin, was falsely
arrested by defendants, JOHN DOES.
49. Defendants CITY, through its police officers wrongfully detained and imprisoned
plaintiff without a warrant.
50. Defendant, KANG, wrongfully detained and imprisoned plaintiff without a warrant.
51. Defendant, SIME, wrongfully detained and imprisoned plaintiff without a warrant.
52. Defendants, JOHN DOES, wrongfully detained and imprisoned plaintiff without a
warrant.
53. In commencing and continuing said wrongful detention and imprisonment,
defendants caused the infant plaintiff to be wrongfully detained in violation of the
laws of the State of New York and his constitutional rights.
54. At the time of the unlawful imprisonment, the infant plaintiff had not committed any
illegal act.
55. At the time of the unlawful imprisonment, the infant plaintiff had not committed or
attempted to commit any crime.
56. At the time of the unlawful imprisonment, the infant plaintiff had not given

defendants probable cause to believe that he had committed any illegal acts.

57. At the time of the infant plaintiff's unlawful imprisonment, defendants knew or should have known, through the exercise of proper police procedure and reasonable investigation, that the aforementioned imprisonment was false and without justification.

58. Defendants willfully and wrongfully accused plaintiff of having committed a crime in violation of the Penal Laws of the State of New York and New York State Vehicle and Traffic Laws.

59. The aforesaid arrest was unlawful and not based upon a warrant, probable cause, and/or any other justification, and was therefore a false arrest.

60. As a result of the foregoing, the infant plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

61. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the courts of lesser jurisdiction.

THIRD CAUSE OF ACTION

62. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "61" above as if fully set forth herein.

63. Subsequent to plaintiff's arrest, defendant, CITY, through its agents, servants and/or employees, did maliciously cause a criminal prosecution to be commenced against plaintiff without probable cause and in bad faith.

64. In commencing said malicious prosecution, defendant, CITY, its agents, servants and/or employees, caused plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.
65. In commencing and continuing the said malicious prosecution, defendant, KANG, caused plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.
66. In commencing and continuing the said malicious prosecution, defendant, SIME, caused plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York and the New York State Vehicle and Traffic Laws.
67. In commencing and continuing the said malicious prosecution, defendants, JOHN DOES, caused plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York and the New York State Vehicle and Traffic Laws.
68. Plaintiff had not committed or attempted to commit any illegal act(s).
69. Plaintiff had not given defendant, CITY, its agents, servants and/or employees probable cause to believe that he had committed the illegal acts of which he was accused.
70. Plaintiff had not given defendant, KANG, probable cause to believe that he had committed the illegal acts of which he was accused.
71. Plaintiff had not given defendant, SIME, probable cause to believe that he had committed the illegal acts of which he was accused.
72. Plaintiff had not given defendants, JOHN DOES, probable cause to believe that he had committed the illegal acts of which he was accused.
73. Defendant, CITY, its agents, servants and/or employees, knew, or should have known

through the exercise of proper police procedure and reasonable care that said investigation was false, flawed and incomplete.

74. Defendant, KANG, knew, or should have known through the exercise of proper police procedure and reasonable care that said investigation was false, flawed and incomplete.

75. Defendant, SIME, knew, or should have known through the exercise of proper police procedure and reasonable care that said investigation was false, flawed and incomplete.

76. Defendants, JOHN DOES, knew, or should have known through the exercise of proper police procedure and reasonable care that said investigation was false, flawed and incomplete.

77. Defendant, CITY, its agents, servants and/or employees, willfully and wrongfully accused plaintiff of having violated the Penal Law of the State of New York.

78. Defendant, KANG, willfully and wrongfully accused plaintiff of having violated the Penal Law of the State of New York.

79. Defendant, SIME, knew, or should have known through the exercise of proper police procedure and reasonable care that said investigation was false, flawed and incomplete.

80. Defendants, JOHN DOES, knew, or should have known through the exercise of proper police procedure and reasonable care that said investigation was false, flawed and incomplete.

81. All criminal charges against plaintiff were dismissed on October 8, 2016

82. As a result of the aforementioned malicious prosecution, plaintiff suffered and

continues to suffer substantial damages.

83. As a result of the foregoing, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

84. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

FOURTH CAUSE OF ACTION

85. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "84" above as if fully set forth herein.

86. Defendant, CITY, through its agents, servants and/or employees, negligently performed their duties in that they failed to exercise such care in the performance of their police duties as a reasonably prudent police officer would have under similar circumstances.

87. Defendant, KANG, negligently performed his duties in that he failed to exercise such care in the performance of his police duties as a reasonably prudent police officer would have under similar circumstances.

88. Defendant, SIME, negligently performed his duties in that he failed to exercise such care in the performance of his police duties as a reasonably prudent police officer would have under similar circumstances.

89. Defendants, JOHN DOES, negligently performed their duties in that he failed to exercise such care in the performance of his police duties as a reasonably prudent

police officer would have under similar circumstances.

90. As a result of defendants' negligence, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
91. By reason of the foregoing, plaintiff demands judgment against defendants, in a sum of money which exceeds the jurisdictional limits of all Courts of lesser jurisdiction.

FIFTH CAUSE OF ACTION

92. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "91" above as if fully set forth herein.
93. The aforementioned false arrest, assault and battery and malicious prosecution were designed to and did cause specific and serious bodily and psychological harm, pain and suffering to plaintiff in violation of plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.
94. Defendant, KANG, violated plaintiff's civil rights by maliciously initiating a prosecution against the infant plaintiff in violation of the 42 U.S.C. §1983, the Fourth Amendment to U.S. Constitution and the Constitution of the State of New York.
95. Defendant, SIME, violated plaintiff's civil rights by maliciously initiating a prosecution against the infant plaintiff in violation of the 42 U.S.C. §1983, the Fourth Amendment to U.S. Constitution and the Constitution of the State of New York.
96. Defendants, JOHN DOES, violated plaintiff's civil rights by maliciously initiating a prosecution against the infant plaintiff in violation of the 42 U.S.C. §1983, the Fourth

Amendment to U.S. Constitution and the Constitution of the State of New York.

97. Defendant, KANG, violated plaintiff's civil rights by subjecting him to an illegal search and seizure in violation of the 42 U.S.C. §1983, the Fourth Amendment to U.S. Constitution and the Constitution of the State of New York.

98. Defendant, SIME, violated plaintiff's civil rights by using excessive force against him in violation of the 42 U.S.C. §1983, the Fourth Amendment of U.S. Constitution and the Constitution of the State of New York.

99. Defendant, KANG, violated plaintiff's civil rights by falsely accusing him of having committed a crime in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.

100. Defendant, SIME, violated plaintiff's civil rights by falsely accusing him of having committed a crime in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.

101. Defendants, JOHN DOES, violated plaintiff's civil rights by falsely accusing him of having committed a crime in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.

102. The conduct and actions of defendant, KANG, acting in concert and under color of State law, in assaulting, battering, detaining and imprisoning and maliciously prosecuting plaintiff, were done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of his acts, were done without lawful justification, and were designed to and did cause specific and serious bodily harm, pain and suffering in violation of plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments

Four and Fourteen, and the Constitution of the State of New York.

103. The conduct and actions of defendant, SIME, acting in concert and under color of State law, in assaulting, battering, detaining and imprisoning and maliciously prosecuting plaintiff, were done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of his acts, were done without lawful justification, and were designed to and did cause specific and serious bodily harm, pain and suffering in violation of plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

104. The conduct and actions of defendants, JOHN DOES, acting in concert and under color of State law, in assaulting, battering, detaining and imprisoning and maliciously prosecuting plaintiff, were done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of his acts, were done without lawful justification, and were designed to and did cause specific and serious bodily harm, pain and suffering in violation of plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

105. Defendant, KANG, deprived plaintiff of his liberty in violation of plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

106. Defendant, SIME, deprived plaintiff of his liberty in violation of plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the

United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

107. Defendants, JOHN DOES, deprived plaintiff of his liberty in violation of plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

108. The actions taken by defendant, KANG, were undertaken under color of law and would not have existed but for said defendant using his official power.

109. The actions taken by defendants, JOHN DOES, were undertaken under color of law and would not have existed but for said defendant using his official power.

110. As a result of the above-mentioned constitutionally impermissible conduct, the infant plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

111. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

EIGHTH CAUSE OF ACTION

112. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "113" above as if fully set forth herein.

113. The infant plaintiff's arrest was effectuated in retaliation for his mother's complaint about her son having been illegally stopped, searched and detained, was

without probable cause and was in violation of plaintiff's constitutional rights as guaranteed by the United States Constitution and actionable pursuant to 42 U.S.C. 1983.

NINTH CAUSE OF ACTION

114. Plaintiffs repeat and reiterate each and every allegation contained in paragraphs numbered "1" through "113" above as if fully set forth herein.

115. Plaintiff, MARIA GARCIA, is the mother and guardian of infant plaintiff, TYLER MARIN, who at the time of the above-mentioned incident was an infant, and was entitled to and did receive the services of said infant.

116. That by reason of the aforesaid, plaintiff, MARIA GARCIA, has been deprived of the services, and companionship of said infant and has been compelled to render services, spend money and incur obligations for legal expenses; taking time to attend court appearances with her son.

117. As a result of the foregoing, plaintiff, MARIA GARCIA, demands judgment against defendants in a sum of money, which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

118. In the event that plaintiffs are successful in the prosecution of the aforesaid claim(s), plaintiffs shall be a prevailing party within the meaning of 42 U.S.C. §1988 and will be entitled to the recovery of attorneys' fees from the defendants.

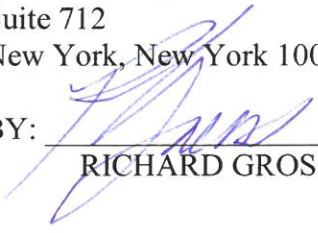
WHEREFORE, plaintiffs, TYLER MARIN and MARIA GARCIA, respectfully demand judgment against defendants, THE CITY OF NEW YORK, DET. KENNETH KANG, P.O. SANDRO SIME and P.O. JOHN DOES #1-10, and request compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all Court of lesser

jurisdiction; an award of reasonable attorney's fee, costs and disbursements of this action; and such other and further relief as this Court may deem just, fair, and proper under the circumstances.

Dated: New York, New York
September 26, 2016

Yours, etc.

RUBERT & GROSS, P.C.
Attorneys for Plaintiff
150 Broadway
Suite 712
New York, New York 10038

BY: 

RICHARD GROSS

VERIFICATION

RICHARD GROSS, an attorney admitted to practice in the Courts of New York, state:

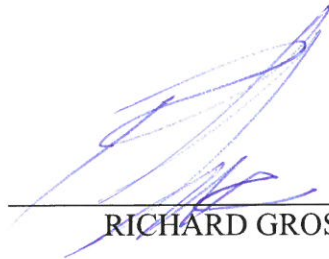
That I am a member of the law firm of RUBERT & GROSS, P.C., attorneys of record for plaintiff in the within action; I have read the foregoing COMPLAINT and know the contents thereof, the same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief, and as to those matters I believe them to be true.

That the reason this verification is being made by me and not by the plaintiff is because the plaintiff does not reside in the county within which we maintain our office.

The grounds of my belief as to all matters not stated upon my own information are as follows: conversations with plaintiff and the documents contained within my file.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York
September 26, 2016



RICHARD GROSS